

ADULT DAY TRANSITION SERVICES AGREEMENT

This Adult Day Transition Services Agreement ("Agreement") is made by and between Brecksville Broadview Heights High School (the "District"), having principal office located at 6380 Mill Rd. Broadview Heights, Ohio 44147 and I Am Boundless, Inc. ("IAB") a corporation having a principal place of business at 445 East Dublin Granville Rd. Bldg H. Worthington, Oh 43085. The District and IAB are hereinafter jointly referred to as the "Parties" and, individually, as a "Party." This Agreement is effective as of August 1, 2024, the "Effective Date".

I. PURPOSE.

This Agreement is intended to establish a contractual relationship between the District and IAB pursuant to which IAB will provide transition services for individuals located at the Brecksville Broadview Heights High School as specified under the terms set forth in this Agreement.

WHEREAS, IAB will provide transition based services for youth in the Brecksville Broadview Heights High School.

WHEREAS, the District, in accordance with Title 33 of the Ohio Revised Code may enter into Agreements with other school districts and providers of services for the education of their students under terms agreed upon by both parties; and

WHEREAS, the parties desire to enter into an Agreement whereby the District will provide reimbursement to IAB for the services designated in this Agreement.

Now therefore, IAB and the District, for the mutual considerations herein contained and specified, do hereby agree as follows:

II. TERM.

This Agreement is effective August 1, 2024, and will remain in effect through July 31, 2025, and shall automatically renew for one (1) year term unless terminated as provided within this Agreement or extended in a writing agreed upon by the Parties and appended hereto.

III. AUTHORITY TO CONTRACT.

Each Party assures it possesses legal authority to contract concerning the contractual obligations referenced in this Agreement.

IV. CONSIDERATION AND SERVICES PROVIDED.

In consideration of the promises, each to the other, herein contained and for good and valuable consideration, it is hereby agreed as follows:

A. IAB Responsibilities:

1. IAB shall provide the following service to the identified individuals served based on their need (listed in Exhibit A):
 - i. Transition-based services to ensure student are collage and career ready upon graduation so they can be fully participating members of their community.
 - ii. Specific activities to include discovery assessment for students, business engagement and job development, participation in parent education meetings and IEP meetings, career-based internship and exploration activities, and job coaching support.
2. IAB shall provide data regarding student progress and services demonstrating compliance with the participating students' Individualized Education Programs.

3. IAB shall have sole approval discretion when determining the appropriateness of students being referred by the District for services contained in this Agreement, or for maintaining services.
4. IAB shall work collaboratively with the District with providing feedback and information regarding progress reporting of the individual.
5. IAB shall have sole approval discretion when determining the appropriateness of students being referred by the School district for services contained in this Agreement, or for maintaining services. Efforts to remediate concern prior to termination of a placement which may include team meeting; additional support or increase in acuity levels.

B. The District Responsibilities:

1. The District shall monitor the quality of services delivered under this Contract in the following manner;
2. The District shall make referrals of appropriate students to IAB for services under this Agreement.
3. The District shall secure all required parental/guardian consents for services under this Agreement and provide said consents to the IAB.
4. The District shall provide a liaison to the IAB to provide additional support, to include but not be limited to consultation on behavioral or work-related issues, and any other additional information as needed.
5. The District shall maintain all rights and obligations under state and federal law for the education of the student.
6. The District shall include IAB as a member of the student's IEP team.
7. The District is the district of residence for the student. If a residency changes or the student is no longer enrolled within the school district, the District shall notify IAB.
8. The District shall hire or contract for any therapy assessments or therapy services that may be needed.

- C. During the term of this Agreement, IAB may provide the student with additional services and supports, differing from and in addition to those provided pursuant to Section IV (A) above, when in IAB's professional opinion and based upon its assessment such additional services and supports are beneficial and appropriate, they are authorized in writing by the District and/or by the student's parent/guardian, and such services and supports are eligible for funding by alternative financial sources, such as Medicaid or private insurance.

D. PAYMENT FOR SERVICES

1. The payment for the services described in Section IV(A), above, will be one hundred and six 00/100 dollars (\$106.00) per hour/per student, paid by the District to I Am Boundless, Inc. IAB agrees to invoice the District for this payment amount monthly. The fee owed for each individual served will be based upon the number of hours in the month that the student was served. The itemized invoice will be submitted by the fifteenth of the month following the completion of the services rendered. Payment for services will be made by the District to IAB by the fifteenth of the next month.

1. District may submit payment electronically or by mail as follows:

Via email: billing@iamboundless.org

Via mail: Accounts Receivable
I Am Boundless, Inc.

445 East Dublin Granville Rd., Bldg H.
Worthington, Oh 43085

2. Boundless will submit invoices electronically or by mail as follows:

Via email: _____

Via mail: _____

- E. IAB, and any service provider supplied by IAB to perform the services specified in this Agreement, shall perform those services in accordance with IAB's and/or the service provider's own methods and will be subject to the control of the District only as to the end product or final result of such services, not as to the means whereby it is to be accomplished.

V. INDEPENDENT CONTRACTOR RELATIONSHIP.

It is agreed that the legal relationship between IAB and the District, and between IAB's service provider(s) and the District, is of a contractual nature. Both IAB and the District assert and believe that IAB and the individual service providers it supplies to the District to perform the services specified in this Agreement are acting as independent contractors to the District in providing those services. IAB and its individual service providers are at all times acting as an independent contractor and not as subcomponents, officers, agents, or employees of the District. As an independent contractor, IAB and its officers and employees and individual service providers are not entitled to any current or future benefits provided to employees of the District, except as otherwise provided in this contract. Further, the District shall not be responsible for withholding of social security, federal and/or state income tax, or unemployment compensation from payments made by the District to IAB.

VI. BACKGROUND CHECKS and LICENSURE.

- A. IAB shall obtain Bureau of Criminal Investigation criminal background checks for any IAB employees or providers that will be providing services to the Student. These checks shall satisfy the requirements of Ohio Revised Code Chapter 3319. IAB shall not assign any employee to perform duties pursuant to this Agreement who has a disqualifying offense under these statutes. IAB shall pay the costs of obtaining background checks and it shall, upon request, provide the District with copies of the background checks.
- B. IAB shall ensure that individuals providing services under this Agreement obtain and maintain all necessary licensure to perform said services. IAB will provide the District copies of all professional licensures, upon request, of personal performing services under this Agreement prior to the commencement of services.

VII. CONFIDENTIALITY

District agrees not to disclose any information obtained while performing the services set forth in this contract without the express prior written informed consent of the individual authorized to release such records. Specifically with respect to student-specific protected health information, District agrees at all times to retain the confidentiality of any consumer-specific information made available to or generated by the District through the course of the contact.

District agrees that the confidentiality of student (collectively, "Confidential Information") is the property of I Am Boundless, Inc., and the District will keep that information confidential and will use such items only in accordance with performance of this Agreement, or any other Agreement issued by I Am Boundless, Inc. "Confidential Information" is defined as:

- Any Protected Health Information (PHI), which includes past, present, and future physical or mental health and/or alcohol and substance abuse conditions and/or

treatments, demographic information, social security number, driver's license/ID numbers, registration records, family records, test results, conversations, research records, and financial information in any medium, whether oral, written, or electronic.

In cases where District and subcontractors of the District will have access to Protected Health Information (PHI) defined in 45 CFR 160.103, either electronic or non-electronic, District must complete the Business Associate Agreement, attached at Exhibit B.

If applicable, IAB shall comply with any applicable requirements of FERPA.

VIII. RECORDS

IAB shall maintain a record system adequate for recording the services provided, charges, data and other commonly accepted information for services provided to the student under this contract. IAB shall allow the District access to these records at any time during regular business hours, upon request. At a minimum, IAB shall maintain all records, information, data, reports and documentation as required for the implementation of the students Individual Education Plan and the services outlined within this contract.

VII. INSURANCE.

IAB shall acquire and be responsible for maintaining professional liability insurance in the amount of One Million Dollars (\$1,000,000) per occurrence and Three Million Dollars (\$3,000,000) in the annual aggregate. Additionally, IAB shall provide employment and general liability insurance covering the acts of IAB service providers performing services under this Agreement with minimum limits of One Million Dollars (\$1,000,000) per occurrence and Three Million Dollars (\$3,000,000) in the annual aggregate. The District will maintain customary comprehensive general liability insurance. Each Party shall provide the other with proof of such insurance coverage promptly upon the request by the other.

VIII. ASSIGNMENT.

Neither this Agreement nor any rights or responsibilities shall be assigned or otherwise transferred by either Party without the prior written consent of the other.

IX. SUBCONTRACTING.

Except as otherwise provided in this Agreement, none of the work or services covered by this Agreement shall be subcontracted without the prior written approval of the District. All approved subcontracts must conform to applicable requirements set forth in this Agreement.

X. VENUE AND CHOICE OF LAW.

This Agreement shall be interpreted under and governed by Ohio law. Venue for judicial or arbitral construction shall only be proper in Franklin County, Ohio.

XI. WAIVER OF BREACH.

The waiver of any provision or the breach of any provision of this agreement will not be effective unless made in writing. Any waiver by either party of any provision or the breach of any provision of this agreement will not operate or be construed to be a continuing waiver of the provision or the breach of the provision.

XII. TERMINATION OF AGREEMENT.

Without cause, IAB may terminate this Agreement at any time upon thirty (30) days written notice to the District. Without cause, the District may terminate this Agreement with thirty (30) days written notice to IAB. If the District chooses to terminate, IAB will not be required to perform services beyond the date of termination of this Agreement. Notwithstanding anything contrary contained in this Agreement, IAB may terminate this Agreement upon two weeks' notice to the District should any of the following events occur:

- IAB's decision to terminate its business and liquidate its assets.
- Bankruptcy or Chapter 11 reorganization of IAB.
- The merger or consolidation of IAB with another company.
- Prior to the expiration of this Agreement, IAB and the District may agree to replace this Agreement with a new agreement for services as determined by the Parties as a result of interim progress evaluations.

XIII. AMENDMENTS TO AGREEMENT.

The District and IAB may mutually agree to amend this Agreement. In order to effectuate an amendment, proposed changes must be ratified, if required, by both Parties in accordance with the legal requirements governing such ratification, reduced to writing, duly signed and attached to the original of this agreement. This Agreement shall be subject to renegotiation upon changes in federal or state laws or regulations to conform to any changes caused by amendments or revisions to those laws or regulations.

XIV. NOTIFICATION.

All notices under this Agreement shall be sent to the respective addresses by certified mail, return receipt requested, by overnight courier service, by email, or by personal delivery and will be deemed effective upon receipt. A party may change its address for notice by written notice complying with the requirements of this section. Notices to the District will be sent to the address identified below. Notifications required pursuant to this Agreement shall be made in writing and mailed to the addresses shown below. Such notification shall be deemed complete upon mailing.

THE DISTRICT:
Brecksville-Broadview Heights City Schools
6638 Mill Rd.
Cleveland, Oh 44141

IAB:
I Am Boundless, Inc.
445 East Dublin-Granville Road
Building H
Worthington, OH 43085

XV. SECTION HEADINGS.

The section headings contained in this Agreement are for reference purposes only and shall not affect in any way the meaning or interpretation of this Agreement.

XVI. DISPUTE RESOLUTION.

A. Negotiation.

If a dispute arises out of or relates to this Agreement, the Parties agree that senior management will try in good faith to settle the dispute within fourteen (14) calendar days thereafter before resorting to mediation administered by the American Arbitration Association under its Commercial Mediation rules.

B. Mediation and Arbitration.

If a dispute arises out of or relates to this Agreement, or the breach thereof, and if said dispute cannot be settled through direct negotiations of the Parties within the fourteen (14) calendar day period specified above, the Parties agree to first endeavor to settle the dispute in an amicable manner by mediation before a single mediator administered by the American Arbitration Association under its Commercial Mediation Rules, before resorting to arbitration. Once the

Parties have invoked the mediation process, either Party may choose to discontinue that mediation process at any time and commence arbitration. However, the Parties may choose to continue to mediate, if mutually agreeable, notwithstanding the fact that they have commenced the arbitration process.

Upon the commencement of the arbitration process, the unresolved controversy or claim arising out of or relating to this Agreement, or breach thereof, shall be settled by binding arbitration before a single arbitrator administered by the American Arbitration Association in accordance with its Commercial Arbitration Rules. Judgment upon the arbitrator's award may be entered in any court having jurisdiction thereof under the terms of Section X of this Agreement. At any time, the Parties may mutually agree to discontinue the dispute resolution procedures addressed in this Agreement.

C. Selection of Neutral.

Mediation hearings and arbitration hearings shall be conducted before a single neutral selected using the processes specified in the American Arbitration Association's Commercial Mediation Rules and Commercial Arbitration Rules, respectively.

In the case of mediation, the Parties will submit a Request for Mediation to the American Arbitration Association and the Association will choose and appoint a mediator to assist the Parties.

In the case of arbitration, the Parties will use the AAA's listing process pursuant to which the AAA administrator will provide each Party with a list of proposed arbitrators. Each Party will then strike any names they deem to be unacceptable, number the remaining names in order of preference, and return the list to the Association. The AAA will ask arbitrators to serve from among those names remaining on the list, in the designated order of mutual preference.

D. Authority of Mediator.

The mediator shall not have the power to issue a binding decision upon the Parties.

E. Authority of Arbitrator and/or Mediator.

The power of the arbitrator shall be limited strictly to the interpretation, application or enforcement of the express terms of this Agreement. The arbitrator shall have no power to modify, change, add to or subtract from the express terms of this Agreement. The arbitrator shall only address the issue(s) presented by the Parties. The decision of the arbitrator shall be final and binding upon the Parties. The arbitrator will have no authority to award punitive damages, or any other damages not measured by the prevailing Party's actual damages, and may not, in any event, make any ruling, finding or award that does not conform to the terms and conditions of this Agreement.

F. Costs.

The costs of any proof produced at the direction of the mediator or arbitrator, and the rent, if any, for hearing room shall be borne equally by each Party. The expenses of any witnesses shall be borne, if at all, by the Party calling them. The fees of the court reporter shall be paid by the Party asking for one; such fees shall be split equally if both Parties desire a reporter or request a copy of any transcript. All costs directly related to the services of the mediator and/or arbitrator shall be split equally between the Parties.

G. Performance to Continue During Dispute.

Performance of this Agreement shall continue during dispute resolution proceedings. No payment due or payable by a Party shall be withheld on account of a pending reference to

arbitration or other dispute resolution mechanism except to the extent that such payment is the subject of such dispute.

H. Calculation of Time Limits.

The time limits set forth in this Section XVI of this Agreement shall be deemed to commence with the delivery of written notice by one Party to the other Party indicating the existence of a dispute arising out of or relating to this Agreement, or the breach thereof. The Parties may extend any time limit specified in this Section XVI of this Agreement by mutual, written agreement.

XVII. PARTIES RESPONSIBLE FOR OWN ACTS.

Each Party shall be responsible for its own acts or failures to act in connection with the performance of this Agreement.

XVIII. SEVERABILITY.

In the event any portion of the agreement is held to be invalid, the same will not affect in any respect the validity of the remainder of this agreement.

XIX. FORCE MAJEURE.

Neither I Am Boundless, Inc., and its affiliated companies nor District shall be responsible for any delay or failure in performance resulting from any cause beyond their control, including, but without limitation to war, strikes, civil disturbances and acts of God. When the District has knowledge of any actual or potential force majeure or other conditions which will delay or threatens to delay timely performance of this Agreement, the District shall immediately give notice thereof, including all relevant information with respects to what steps the District is taking to complete delivery of the services to I Am Boundless, Inc., and its affiliated companies.

XX. WHOLE AGREEMENT.

This writing contains the entire Agreement between IAB and the District regarding IAB's provision of the services identified in this Agreement. All other agreements between these Parties concerning this subject matter and contract term, whether written or oral, are void.

Witness our hands on the dates adjacent to our signatures:

Brecksville-Broadview Heights City Schools:

I AM BOUNDLESS, INC.:

Signatory: _____

Signatory: _____

DocuSigned by:
Chris Wolf
22BE1A0CBC13499...

Print Name: _____

Print Name: _____

Chris Wolf

Title: _____

Title: _____

COO

Date Signed: _____

Date Signed: _____

5/29/2024

Exhibit A

STATEMENT OF WORK

Discovery - Discovery is a person-centered assessment and planning process that determines preferences, interests, skills, and support needs/accommodations. It results in a Career Discovery Profile and can be used to assist the IP team in identifying a person's place on the path to employment and the desired employment outcome. The profile assists team members to develop services, supports, and the action steps needed to gain community employment.

Business Engagement/Site Development - This service focuses on engaging business and securing sites for Community Based Work Experiences for the students in the Compass program. Businesses are selected and engaged *off* Compass assessments done with students to gauge their interests and skills.

Career Exploration: This service focuses on exploring specific employment options and jobs at various businesses. It may involve informational interviews with individuals or employers who are performing the duties or hiring for the duties to ask questions about the job tasks, training required, and salaries. It may also involve job shadowing.

Community Based Work Experiences - Serving as the primary service of the Compass program, these vocational outings that occur where students are paired *off* Compass assessments to a designated work site. Students have a vocational goal(s) assigned which correlates with their vocational IEP goal and are assigned job duties at the business they are working at to assess employability and job readiness. A report with skill scoring and a written narrative on progress for each student is generated for each community-based work experience.

Meetings - Includes annual IEP meetings, planning meeting between Koinonia Enterprises and school employees involved in the Compass program, and any staff meetings that Koinonia Enterprises is requested to attend.

Family Engagement - Includes home visits (optional and per request or discretion of the family) and any family events that occur throughout the year.

Job Development - Job development is an individualized (1:1) service to develop a strategy to achieve competitive integrated employment. It may include filling out a job application, interviewing for a job, identifying necessary accommodations, and negotiating with an employer for customized employment. This service is intended to result in achievement of competitive integrated employment, consistent with the job seeker's personal and career goals as identified in the IP, as determined through assessments, career exploration, career discovery, community-based work experiences, and/or the employment planning process.

Travel Training - Travel training is a service used to assess an individual's skills and help them

learn the skills they need to travel safely and as independently as possible throughout their community. Training topics can include:

- Identification of street signs and landmarks, knowledge of bus routes and schedules
- Appropriate behavior in the community and on the bus
- Utilizing bus fares cards and IDs
- Effective communication with people in the community
- Other topics that promote navigating the community as independently as possible

Exhibit B
BUSINESS ASSOCIATE AGREEMENT

This Business Associate Agreement ("Agreement") is made on August 1, 2024, by and between I Am Boundless, Inc. and its affiliates ("Boundless") and Brecksville-Broadview Heights City Schools ("Business Associate").

Introduction

The Business Associate is coordinating the provision of transition based services for youth for, with, or on behalf of, Boundless and will have access to Protected Health Information of individuals served by Boundless. This Agreement is intended to ensure that the Business Associate uses or discloses the Protected Health Information only in accordance with the Health Insurance Portability and Accountability Act ("HIPAA"), as amended, Privacy Rule and implements and maintains such safeguards as necessary to protect Protected Health Information in accordance with the HIPAA Security Rule.

Now therefore, in exchange of the mutual promises contained herein, the parties agree as follows:

1. **Definitions.**

The "Privacy Rule" means the Standards for Privacy of Individually Identifiable Health Information at 45 CFR Part 160 and Part 164, Subparts A and E. The "Security Rule" means the Security Rule Standards at 45 CFR Part 160 and Part 164, Subpart B. Terms used but not otherwise defined in this Agreement shall have the same meaning as those terms in the Privacy and Security Rules.

2. **Business Associate's Obligations.**

- A. The Business Associate may use or disclose Protected Health Information to provide the Services (as defined earlier in this Agreement) to Boundless, if such use or disclosure would not violate the Privacy Rule if done by Boundless or the minimum necessary policies and procedures of Boundless.
- B. The Business Associate agrees not to use or disclose Protected Health Information other than as permitted or required by this Agreement, or as required by law.
- C. The Business Associate agrees to implement administrative, physical, and technical safeguards that reasonably and appropriately protect the confidentiality, integrity, and availability of the electronic Protected Health Information that it creates, receives, maintains, or transmits on behalf of Boundless.
- D. The Business Associate agrees to report to Boundless any use or disclosure of Protected Health Information, or any security incident, of which it becomes aware that is not provided for by this Agreement or permissible under the Privacy Rule.
- E. The Business Associate agrees to execute a Business Associate Agreement with any agent, including a subcontractor, to whom it provides Protected Health Information created or received by the Business Associate on behalf of Boundless, and agrees to implement the same restrictions and conditions that apply to the Business Associate under this Agreement, including the safeguards to protect the Protected Health Information required by Section 2(c) of this Agreement.
- F. The Business Associate agrees to mitigate, to the extent practicable, any harmful effect that is known to Business Associate of an intentional or unintentional use or disclosure of Protected Health Information by Business Associate in violation of the requirements of this Agreement.
- G. Business Associate agrees to make internal Boundless books and records, including policies and procedures, and Protected Health Information, relating to the use and disclosure of Protected Health Information received from or created or received by Business Associate on behalf of Boundless, available to Boundless or to the Secretary of

the U. S. Department of Health and Human Services for purposes of the Secretary determining Boundless' compliance with the Privacy Rule.

- H. Business Associate agrees to document disclosures of Protected Health Information and information related to such disclosures as would be required for Boundless to respond to a request by an Individual for an accounting of disclosures of Protected Health Information.
- I. Business Associate agrees to provide to Boundless or an Individual, in a reasonable time and manner, information collected in accordance with Section 2h of this Agreement, as necessary to permit Boundless to respond to a request by an Individual for an accounting of disclosures of Protected Health Information.
- J. The Business Associate agrees to make available Protected Health Information for amendment and incorporate any amendments into the Protected Health Information.
- K. The Business Associate agrees to make available Protected Health Information when requested by Boundless to provide access to an Individual.

3. Boundless' Obligations.

- A. Boundless shall notify the Business Associate of any limitation(s) in its Notice of Privacy Practices to the extent that such limitation may affect the Business Associate's use or disclosure of Protected Health Information.
- B. Boundless shall notify the Business Associate of any changes in, or revocation of permission by an Individual to use or disclose, Protected Health Information, to the extent that such changes may affect the Business Associate's use or disclosure of Protected Health Information.
- C. Boundless shall notify Business Associate of any restriction to the use or disclosure of Protected Health Information that Boundless has agreed to under the Privacy Rule, to the extent that such restriction may affect the Business Associate's use or disclosure of Protected Health Information.

4. Term and Termination.

- A. Term. If there is an underlying written contract for Services between the parties identified in the "Introduction" section of this Agreement, the term of this Agreement shall coincide with the term of the underlying contract, unless otherwise terminated as provided for below. If no underlying written contract exists, this Agreement shall begin on the date first above written and shall expire when all of the Protected Health Information provided by Boundless to the Business Associate or created or received by the Business Associate on behalf of Boundless, is returned to Boundless or destroyed, unless otherwise terminated as provided for below.
- B. Termination. Boundless may terminate this Agreement immediately upon written notice to the Business Associate if Boundless learns that the Business Associate has breached a material term of the Agreement. If termination is not feasible, the Compliance officer must notify the Secretary of the U. S. Department of Health and Human Services of the violation.
- C. Returning or Destroying Documents. Upon expiration or termination of this Agreement, the Business Associate shall ensure that it has returned or destroyed all Protected Health Information received from Boundless or created or received by the Business Associate on behalf of Boundless. If returning or destroying the information is infeasible, it shall (i) provide Boundless with notice of the conditions that make return or destruction infeasible, (ii) extend the protections of this Agreement to such Protected Health Information, and (iii) limit further uses and disclosures of such Protected Health Information to those purposes that make the return or destruction infeasible, for so long as the Business Associate maintains such Protected Health Information. This provision shall apply to Protected Health Information that is in the possession of subcontractors or

agents of the Business Associate. The Business Associate shall retain no copies of the Protected Health Information.

This Agreement was signed by the parties and made effective on the date first above written.

Brecksville-Broadview Heights City Schools:

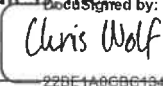
Signatory: _____

Print Name: _____

Title: _____

Date Signed: _____

I Am Boundless, Inc.:

Signatory:  _____
DocuSigned by: 22BE1A8CDB13499...

Print Name: Chris Wolf _____

Title: COO _____

Date Signed: 5/29/2024 _____